

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Michael Dever	Team: Team # 1	CCRB Case #: 200500040	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 12/31/2004 9:28 PM	Location of Incident: Opposite 176 Rivington St.	18 Mo. SOL 6/30/2006	Precinct: 07
Date/Time CV Reported Sat, 01/01/2005 4:30 PM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Sun, 01/02/2005 5:13 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Dannecker	14225	923735	7th Precinct

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Adam Schachtel	25560	889296	7th Precinct
2. POM Christopher Milano	17589	919416	7th Precinct

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Dannecker	Abuse: Police Officer Michael Dannecker stopped the car in which § 87(2)(b) was an occupant.	A . Exonerated

Synopsis

On 1-2-05, § 87(2)(b) walked into the 7th Precinct stationhouse and completed a Civilian Complaint Report. He alleged that Police Officer Michael Dannecker of the 7th Precinct stopped his vehicle on Rivington Street in Manhattan. Without asking § 87(2)(b) for his driver license and registration, PO Dannecker attempted to remove him from the vehicle, telling him that the car smelled of marijuana. § 87(2)(b) denied smoking marijuana § 87(2)(b) PO Dannecker subsequently issued § 87(2)(b) a summons § 87(2)(b) § 87(2)(b) claimed that PO Dannecker's actions constituted harassment and that he believed he was stopped because he was a Hispanic male driving a new car in a mostly white neighborhood.

The undersigned investigator interviewed § 87(2)(b) PO Dannecker and his two partners, POs Christopher Milano and Adam Schachtel. Documents relevant to this case were also obtained, including the summons PO Dannecker issued to § 87(2)(b). A credibility analysis indicates that PO Dannecker's testimony was credible. He stated that after he stopped § 87(2)(b) for playing his car radio at a high-volume, he smelled marijuana and saw smoke coming out of the car window. PO Dannecker then candidly admitted that his suspicion that the odor was coming from § 87(2)(b) vehicle was mistaken. He then issued § 87(2)(b) the summons for unreasonable noise.

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] It is therefore recommended that the allegation regarding PO Dannecker stopping § 87(2)(b) vehicle be closed as exonerated.

Summary of Complaint

Complainant/Victim – § 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) *Hispanic male.* § 87(2)(b)

Civilian Complaint Report completed by § 87(2)(b) (encl. # 5)

§ 87(2)(b) walked into the 7th Precinct stationhouse on 1-2-05 at 4:30 PM and completed a Civilian Complaint Report. The report identifies PO Michael Dannecker as the subject of the complaint and reads as follows:

“A police officer stopped me in the vehicle, attempted to take me out of the car without asking for my license and registration. Police officer said my car smelled like marijuana, but it didn’t § 87(2)(b) The officer then proceeded to give me a summons for loud noise when I didn’t even have my music on. Basically I was harassed because of my appearance and the vehicle I was in and the neighborhood.”

The report is signed by Sergeant Gabriel Alfonso of the 7th Precinct, who subsequently called in the complaint to CCRB.

CCRB Testimony of § 87(2)(b) (encl. # 7-7A)

§ 87(2)(b) was interviewed by the CCRB on 1-12-05. He was interviewed by telephone because he was stationed in San Diego, CA. § 87(2)(b) stated that on 12-31-04 at about 9:30 PM, he was driving a rented 2005 300M Chrysler on Pitt Street in Manhattan when he passed a marked police car, which was parked on the right side of the street. § 87(2)(b) was driving about 25 miles-per-hour. He was listening to the car radio at a normal level and the windows of the car were closed.

§ 87(2)(b) turned left onto Rivington Street, drove a half a block and stopped at a red light. As he was waiting at the light, § 87(2)(b) saw a marked police car behind him. When the light turned green § 87(2)(b) continued driving for another half block, at which point the police car's turret lights went on. § 87(2)(b) immediately pulled over to the left side of the street and put the front driver and passenger seat windows down. Three officers, who were dressed in NYPD raid jackets, exited the marked car. PO Dannecker approached the driver side of § 87(2)(b) car. The other two officers, later identified as POs Milano and Schachtel, stood at the front passenger side window and the rear passenger side window.

When PO Dannecker reached the driver side door of § 87(2)(b) car, he pulled up the knob on the driver side door to unlock it, ordered § 87(2)(b) to "Get out of the car" and attempted to pull the door open. § 87(2)(b) refused, held the door shut and told PO Dannecker that he should request his license and registration and tell him what he did wrong. PO Dannecker then told § 87(2)(b) that his car smelled of marijuana and asked him where the marijuana was. § 87(2)(b) responded that he had no marijuana, adding that he § 87(2)(b) did not do drugs. At that point, PO Dannecker stopped pulling on the door, took a step away from the car and asked, § 87(2)(b)

§ 87(2)(b) PO Dannecker asked, "What is this? I didn't ask you for this" and ordered § 87(2)(b) to produce his license and the registration for his car. § 87(2)(b) then provided PO Dannecker with the information, at which point POs Dannecker and his partners then walked back to their vehicle.

About three minutes later, the officers returned to § 87(2)(b) car. PO Dannecker returned his license and registration to him and said that he was issuing him a summons because he was playing the music so loud. He then handed § 87(2)(b) a summons § 87(2)(b) and began walking back to his vehicle. At that point, § 87(2)(b) said, "Hold on, officer. Can I ask you a question?" and told PO Dannecker that he did not understand his reasoning for stopping him because there was no marijuana in his car, so the car could not have smelled of marijuana. § 87(2)(b) added that he did not understand why he was receiving a summons for an entirely different offense. PO Dannecker responded that he would not expect § 87(2)(b) to be speaking to a police officer in that manner, and that he was sure that § 87(2)(b) would not speak to § 87(2)(b) that way. PO Dannecker then told § 87(2)(b) that his name and badge number were on the summons if he had any problems and returned to his vehicle with his partners.

Results of Investigation

On 12-31-04, Police Officers Michael Dannecker, Christopher Milano and Adam Schachtel were assigned to New Year's Eve Quality of Life Enforcement in the confines of the 7th Precinct. PO Dannecker was operating marked RMP # 4432. PO Schachtel was seated in the front passenger seat and PO Milano was seated in the backseat.

Subject Officer – Police Officer Michael Dannecker

Summons issued to § 87(2)(b) by Police Officer Dannecker (encl. # 9)

PO Dannecker issued summons # § 87(2)(b) to § 87(2)(b) § 87(2)(b). The summons indicates that the offense occurred on 12-31-04 at 9:28 PM opposite 176 Rivington Street.

CCRB Testimony of Police Officer Dannecker (encl. # 10-10B)

PO Dannecker was interviewed at the CCRB on 1-25-05. He stated that on 12-31-04 at 9:28 PM, he and POs Milano and Schachtel were stopped at a red light and facing westbound on Rivington Street. PO Dannecker saw a silver Dodge sedan turn onto Rivington Street from Pitt Street. The driver, later identified as § 87(2)(b), began driving westbound on Rivington Street. § 87(2)(b) was driving within the speed limit, but PO Dannecker heard extremely loud music with heavy bass coming from the area where the car was. He was about twenty-five feet away from § 87(2)(b) vehicle at that point. PO Dannecker did not recall whether the windows were open when he first saw the car. No other vehicles were driving in the same area, so PO Dannecker determined to stop § 87(2)(b) and activated the turret lights of the vehicle.

§ 87(2)(b) pulled over opposite 176 Rivington Street. That area was crowded with people because it was New Year's Eve. PO Dannecker did not recall exactly when the music from § 87(2)(b) car stopped playing, but stated that he did not hear it after he activated the turret lights of his vehicle. PO Dannecker began approaching the driver side of § 87(2)(b) car, at which point he smelled marijuana. When PO Dannecker got closer to the car, he saw smoke coming out of the driver side window. PO Dannecker walked to the front driver side of the car where § 87(2)(b) was seated and PO Milano stood at the front passenger side. PO Schachtel stood somewhere at the rear of § 87(2)(b) car. POs Schachtel and Milano never spoke to § 87(2)(b).

PO Dannecker asked § 87(2)(b) to exit the car and hand over the marijuana. § 87(2)(b) refused, so PO Dannecker opened the driver side door. He did not have to unlock the door because it was already unlocked. § 87(2)(b) never tried to pull the door shut. The inside light of the vehicle came on, at which point PO Dannecker saw § 87(2)(b) holding a cigarette down low between his legs near his lap, which had burned down to the filter. At that point, PO Dannecker realized that the marijuana odor was probably coming from the immediate area around the car. PO Dannecker then explained to § 87(2)(b) that he had initially pulled him over due to the loud music and asked him to produce his license and registration. § 87(2)(b) was upset at PO Dannecker's accusing him of smoking marijuana and denied that loud music was coming from his car. He identified himself as § 87(2)(b) and was reluctant to provide the paperwork PO Dannecker requested. Regarding § 87(2)(b) demeanor, PO Dannecker stated, "I wouldn't say he was screaming, but his voice and his tone were very loud, and he was noticeably angry and upset." However, when PO Dannecker asked § 87(2)(b) to produce the paperwork for a second time, he complied. § 87(2)(b) also produced a § 87(2)(b). At that point, PO Dannecker told him that § 87(2)(b) had no bearing on whether or not he was going to receive a summons. As PO Dannecker walked back to his vehicle, he briefly looked around the area and did not see anyone smoking marijuana.

After determining that the paperwork § 87(2)(b) produced was valid, PO Dannecker wrote § 87(2)(b) a summons § 87(2)(b). PO Dannecker and his partners approached § 87(2)(b) car, and PO Dannecker handed § 87(2)(b) the summons. At that point, § 87(2)(b) became more upset, but PO Dannecker did not recall what he said.

Witness Officer – Police Officer Christopher Milano (encl. # 11-11B)

PO Milano was interviewed at the CCRB on 2-2-05. PO Milano stated that he approached the passenger side of § 87(2)(b) car and heard PO Dannecker tell § 87(2)(b) that he had stopped him for playing his radio so loudly. PO Milano saw smoke coming from a small cigarette § 87(2)(b) was holding and heard PO Dannecker tell § 87(2)(b) that he smelled marijuana. PO Milano did not smell marijuana at any point. § 87(2)(b) replied that he did not use marijuana and did not have any marijuana. PO Dannecker then asked what he was smoking and § 87(2)(b) replied that he was smoking a cigarette, which had burned down to the filter. PO Milano also heard § 87(2)(b) telling PO Dannecker that he § 87(2)(b). PO Milano stated that § 87(2)(b) was cooperative, but seemed to be annoyed, judging by the tone of his voice. At that point, PO Dannecker said, “Alright, no problem” and asked § 87(2)(b) for his license and registration, which he provided. PO Milano never saw PO Dannecker attempt to open the driver side door of § 87(2)(b) car. PO Dannecker then wrote § 87(2)(b) a summons § 87(2)(b).

Witness Officer – Police Officer Adam Schachtel (encl. # 12-12A)

PO Schachtel was interviewed at the CCRB on 2-2-05. He stated that he stood at the rear of § 87(2)(b) car during the stop. PO Schachtel never saw smoke coming out of the car and never smelled marijuana. PO Schachtel did not hear the initial conversation between PO Dannecker and § 87(2)(b). He later observed that the driver side door of § 87(2)(b) car was open and stated that § 87(2)(b) possibly opened the door to hand PO Dannecker his license and registration. PO Schachtel never heard PO Dannecker ask § 87(2)(b) to exit the car. After obtaining § 87(2)(b) license and registration, POs Dannecker and Milano returned to their vehicle and got back inside. PO Schachtel stayed outside because he was smoking a cigarette. Shortly afterward, POs Dannecker and Milano approached § 87(2)(b) car again. PO Dannecker handed him a summons § 87(2)(b) and began walking back to their vehicle with PO Milano.

Prior Bad Acts

§ 87(2)(b) has no arrests listed on the Booking, Arraignment and Disposition System

CCRB History of Subject Officer (encl. # 3)

PO Dannecker has one prior CCRB complaint on his record, with over five years on the force. In that case, # 200304950, an allegation that he improperly frisked four civilians was substantiated. PO Dannecker pleaded guilty to the charge and accepted instructions.

Conclusions and Recommendations

Undisputed facts

It is undisputed that PO Dannecker determined to stop § 87(2)(b) claiming that he heard loud music coming from the car. § 87(2)(b) pulled over, at which point PO Dannecker approached the driver side of § 87(2)(b) vehicle, PO Milano approached the passenger side and PO Schachtel stood at the rear. PO Dannecker smelled marijuana coming from § 87(2)(b) vehicle when he was approaching, so he told § 87(2)(b) to step out of the vehicle. § 87(2)(b) refused, so PO Dannecker attempted to open the driver side door.

During the interaction, § 87(2)(b) told PO Dannecker that he § 87(2)(b). PO Dannecker said that he did not need the § 87(2)(b) and ordered § 87(2)(b) to produce his license and the registration for the car he was driving. He then issued § 87(2)(b) a summons § 87(2)(b). § 87(2)(g)

Credibility Analysis

§ 87(2)(b) testified that PO Dannecker stopped him for no reason and then issued him a completely baseless summons. § 87(2)(g)

§ 87(2)(b) In the Civilian Complaint Report that § 87(2)(b) completed at the stationhouse, he stated that his car radio was not even playing when he was stopped. In his CCRB testimony, however, he admitted the car radio was on, but denied that it was playing at a high volume. § 87(2)(b) produced an identification card showing he § 87(2)(b) before PO Dannecker returned to the police car and wrote the summons. § 87(2)(g)

PO Dannecker testified that he smelled marijuana as he approached § 87(2)(b) car. While POs Milano and Schachtel testified that they did not smell marijuana, PO Milano confirmed that § 87(2)(b) was holding a smoldering cigarette. § 87(2)(g)

§ 87(2)(b) himself testified that PO Dannecker told him that he smelled marijuana coming from his vehicle.

§ 87(2)(g)

A. Abuse of Authority: Police Officer Michael Dannecker stopped the car in which § 87(2)(b) was an occupant.

§ 87(2)(g)

According to Barry Kamins' New York Search and Seizure:

“The stop of an automobile constitutes a seizure, and an officer may stop a vehicle to investigate criminal activity when he has a *reasonable suspicion* that its occupants are presently engaged, or are about to engage in conduct in violation of the law.”

The term “reasonable suspicion” was defined in *People v. Cantor* (1975), as “the quantum of knowledge sufficient to induce an ordinarily prudent and cautious man under the circumstances to believe that criminal activity is at hand.” In this case, it has been established that the officers observed § 87(2)(b) playing his radio at a volume loud enough that they were able to hear it outside § 87(2)(b) vehicle. § 87(2)(g)

§ 87(2)(g) section 240.20, subsection 2, of the New York

State Penal Law. That subsection states, “A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof...He makes unreasonable noise.”

§ 87(2)(g) it is recommended that allegation A be closed as exonerated.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: